PROJECT MUSE®

Is Mexico at the Gates of Authoritarianism?

Azul A. Aguiar Aguilar, Rodrigo Castro Cornejo, Alejandro Monsiváis-Carrillo



Journal of Democracy, Volume 36, Number 1, January 2025, pp. 50-64 (Article)

Published by Johns Hopkins University Press
DOI: *https://doi.org/10.1353/jod.2025.a947883*

For additional information about this article
https://muse.jhu.edu/article/947883

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

IS MEXICO AT THE GATES OF AUTHORITARIANISM?

Azul A. Aguiar Aguilar, Rodrigo Castro Cornejo, and Alejandro Monsiváis-Carrillo

Azul A. Aguiar Aguilar *is professor of political science at ITESO, the Jesuit University of Guadalajara.* ***Rodrigo Castro Cornejo*** *is assistant professor of political science at the University of Massachusetts–Lowell.* ***Alejandro Monsiváis-Carrillo*** *is professor at El Colegio de la Frontera Norte, a research center in Mexico.*

Former Mexican president and renowned populist Andrés Manuel López Obrador (AMLO) excels at patriotic symbolism. Take 15 September 2024, the night of his last Grito de Independencia, the annual commemoration of Mexico's war of independence. From the balcony of the National Palace, the outgoing president praised the usual pantheon of national heroes and saluted democracy, justice, workers, indigenous people, and a host of others before proclaiming to the massive crowd below on Mexico City's Constitution Square: "Long Live the Fourth Transformation! Long Live Mexico!"

The Fourth Transformation is the catchphrase AMLO fashioned to convey the historical significance of his administration, which he has depicted as a momentous period of "true change," akin to the other "transformations" in Mexican history: Independence (1821), the Reform War (1858–61), and the Mexican Revolution (1910–20). Notably, the Fourth Transformation was intended to outlast AMLO's presidency—and not by upholding democratic values and institutions but rather by subverting them. That same night, in fact, the president signed into law a controversial constitutional reform aimed at weakening the judiciary.

Elected in 2018, López Obrador soon set in motion the gradual subversion of Mexican democracy, eventually succeeding in asserting his personalistic authority over democratic norms and procedures. His government often disregarded the rule of law, ignored legislative oversight, weakened civilian control of the military, attacked the courts and bureaucratic agencies, held barely constitutional plebiscitary consultations, violated campaign regulations, and more.[1] Not surprisingly, ma-

Journal of Democracy Volume 36, Number 1 January 2025
© 2025 National Endowment for Democracy and Johns Hopkins University Press

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

jor democracy indexes, including the Varieties of Democracy (V-Dem) project, now deem Mexico an active case of autocratization.[2]

Subverting a relatively established electoral democracy is no small feat. And since Mexico's presidency is limited to a single term, AMLO had only six years in which to transform the regime. Along the way, he experienced significant setbacks. In particular, his government failed to promulgate a pair of initiatives aimed at defanging the constitutionally mandated National Electoral Institute (INE) and dismantling most safeguards of electoral integrity. After protesters and opposition parties stopped the first initiative, known as Plan A, in 2022, AMLO immediately tried again with Plan B, only to be stopped in 2023 by the Supreme Court. He then returned in 2024 with a Plan C, this time targeting the judiciary.

On 2 June 2024, Mexicans went to the polls to elect López Obrador's successor and a new Congress. Claudia Sheinbaum, AMLO's protégé and standard-bearer of his National Regeneration Movement (Morena), won with roughly 60 percent of the vote. Her party and its allies received just 54 percent of the vote in legislative elections. The INE and Electoral Tribunal, however, awarded the Morena coalition 73 percent of the Chamber of Deputies' 500 seats and 66 percent of the Senate's 128, giving the coalition a supermajority.

After its inauguration, the new Congress approved AMLO's controversial Plan C, passing a constitutional amendment essentially dismantling the federal courts in their current form—a "departing gift" to the president, in the words of Morena lawmakers, before the end of his term. Fifteen days later, the outgoing president promulgated another constitutional reform increasing the military's authority in civil governance. By the end of AMLO's presidency, Mexico was on the brink of becoming a competitive authoritarian regime.

How did López Obrador take Mexico to this point? We argue that his brand of populism, articulated through the Fourth Transformation, allowed him to launch a series of attacks against core democratic institutions and to mobilize popular support for these efforts. Freedom of the press, electoral oversight, judicial independence, and administrative accountability all suffered. AMLO explicitly framed Plan C's overhaul of the judiciary as a means to improve "authentic" democracy, portraying allegedly opposition-controlled institutions as barriers to welfare distribution and the "popular will." By claiming that corrupt elites had captured democratic institutions, AMLO's populist rhetoric provided a "democratic" and "redistributive" justification for executive aggrandizement. His populist rhetoric also encouraged voters to endorse the "continuation of the transformation" by electing Sheinbaum.

The Populist Subversion of Democracy

Populism is often viewed as a mobilization strategy for personalist leaders.[3] While it is true that personalist and illiberal politicians are of-

ten populist, populism would be more properly defined as a set of ideas and discourses centered around the struggle between "the people" and "elites," with the former embodying the "moral good" and the latter representing "evil," "corruption," and similar Manichean concepts.[4] Populism is thus not antidemocratic *per se*. Populist leaders can, on the one hand, empower traditionally marginalized groups while, on the other, threatening liberal democracy by undermining political pluralism.[5] Populist ideas often provide ideological justification for personalist and illiberal leaders to advance autocratization by gradually unsettling the democratic regime. It is not populism itself that undermines democracy—rather, it is populist leaders, such as AMLO, who do so by subverting democratic norms.[6]

By claiming that corrupt elites had captured democratic institutions, AMLO's populist rhetoric provided a "democratic" and "redistributive" justification for executive aggrandizement.

López Obrador introduced the Fourth Transformation during his 2018 presidential campaign. The populist platform enabled Morena's rapid ascent in part by delegitimizing the opposition, which was already in disarray. Before the 2018 election, Mexico's party system had been among the most stable in Latin America. The Institutional Revolutionary Party (PRI) and National Action Party (PAN), along with the Party of the Democratic Revolution, had been the country's main political forces since the 1997–2000 transition to democracy. Morena, in contrast, was founded only in 2014, but it quickly became the country's strongest party. Although weakly institutionalized and heavily dependent on its leader like other personalist parties, Morena does have a strong territorial network across the country and succeeded in mobilizing dissatisfied voters against the traditional parties that have governed Mexico since its transition to democracy in 2000 (the "PRIAN" as AMLO commonly labels them). López Obrador's victory in 2018 was not primarily driven by voters' ideological preferences; rather, it represented a rejection of mainstream parties fueled by polarization, particularly negative partisanship against the PAN and PRI.

Once in office, AMLO continued to rely on populist strategies and maneuvers to overcome opposition to his agenda. He framed his rise to power as a moral triumph of "the people" over "corrupt," "conservative," and "neoliberal" elites of the PAN and PRI governments. And he depicted his antidemocratic schemes as part of the "transformation" to a "new regime" that would be an "authentic democracy" of "the people."[7]

López Obrador's version of populism was inclusionary in both symbolic and material terms. His political rhetoric and socioeconomic plans focused largely on "the poor" and underprivileged. His government im-

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

plemented a series of distributive policies that raised available income for many Mexicans in the short term, including significant annual minimum-wage hikes. Many voters also received handouts, scholarships, and targeted cash transfers—often presented as direct payments from the president himself or the Fourth Transformation. At the same time, AMLO avoided tax reform and endorsed "economic austerity," cutting government spending. Public health and education paid the price.

Crucially, AMLO's populist rhetoric aimed to polarize both the electorate and elites, compelling them to make a strategic choice: "There's no way to avoid it; you're either for the transformation or against the transformation."[8] Loyalty to the Fourth Transformation would be rewarded in various ways, while resistance would be costly. Both his rhetoric and actions signaled that the stakes were real. In the last two years of his tenure, and particularly during the 2024 campaign, AMLO told voters that they stood to lose a lot—in terms of scholarships and cash handouts—if the former "corrupt" elites returned to power. This, of course, exacerbated negative partisanship against the PRIAN.

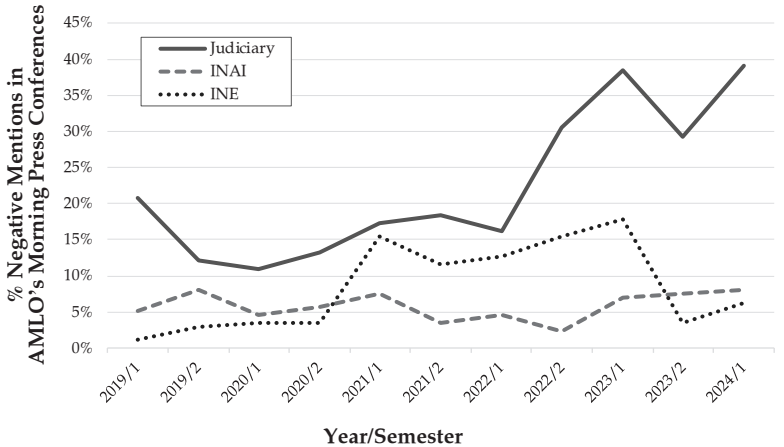
AMLO suggested constantly that his authority was above any law because it was inspired by a collective demand for "justice"—another reason for voters to endorse his "transformation" by voting for Morena in 2024 and supporting Plan C. Just a few days before leaving office, López Obrador argued that the budget for the National Institute for Access to Information and Transparency (INAI), the constitutional body responsible for upholding the right to public information, would be better spent on scholarships for the people.

AMLO's populist barbs took aim not just at his political opponents but also at the media, undermining freedom of the press and limiting citizens' access to information. The president and his party centered their discourse around his character, extolling his supposedly bulletproof honesty and his unmitigated "love for the people." These unassailable virtues in essence put him above criticism and questioning. At the same time, López Obrador questioned the democratic legitimacy of his interlocutors and disparaged or discounted credible evidence of major government failures or the executive's unlawful or undemocratic behavior.

Indeed, AMLO's relationship with critical media outlets was fraught. Early in his presidency, he introduced a daily two-hour morning press conference (Mañanera), supposedly to increase transparency and accountability. In reality, the president often used this platform to discredit critics, attack institutions and opposition groups, and disseminate partial, misleading, or false information. The Mañanera became an effective propaganda tool for stigmatizing critics and opponents as well as for setting media outlets' communication agenda and thus promoting AMLO's preferred policies and reforms.

The president consistently attacked media outlets that questioned his performance or exposed his family's luxurious lifestyle or corruption

Figure 1—AMLO's Attacks on Democratic Institutions



Source: Attacks on Democratic Institutions Database (Azul Aguiar, 2024), drawn from López Obrador's morning press conferences.

scandals within his party. Transgressing due process and overstepping the law, AMLO doxxed some journalists by revealing their salaries, demanding that they justify their earnings as if they were public officials. He also added a weekly segment to the Mañanera called "Who's Who in the News," which he used to discredit, challenge, and stigmatize journalists critical of his government, leading to widespread and often violent digital attacks against them. The special rapporteur for freedom of expression of the Inter-American Commission on Human Rights criticized this segment,[9] warning that it further endangered press freedom in what was already one of the most dangerous countries for reporters; around ten journalists a year are killed in Mexico with impunity. Following Sheinbaum's 2024 victory, several key media outlets replaced regime critics with pro-Morena political analysts who helped to spread AMLO's transformation narrative, perhaps hoping to curry favor with the regime.

Subverting Democratic Institutions

AMLO's rhetorical attacks often escalated into full-fledged institutional assaults aimed at coopting oversight institutions, mainly by installing loyalists. The Senate appointed an active Morena member as president of the National Commission for Human Rights (CNDH) at the beginning of his mandate. Once captured, the CNDH not only served as democratic window dressing, but also actively supported AMLO's attacks on the INE and judiciary. If cooptation or capture failed, however, AMLO moved to undermine the constitutional authority of these entities through legal reform. Among his most consequential targets were the INAI, the INE, and the judiciary. Figure 1 illustrates how the process of

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

attacks unfolded. According to an original database of AMLO's morning press conferences, during the 1,562 Mañaneras held between December 2018 and June 2024, rhetorical attacks were directed against the INAI 111 times, the INE 163 times, and the judiciary 428 times.[10] The distribution of attacks reflects the importance López Obrador accorded to reforming each institution over time.

Undermining the INAI. The INAI was a key source for journalists investigating government corruption, including the food-security agency's scandal under AMLO and the so-called La Estafa Maestra and Casa Blanca scandals under his predecessor, former president Enrique Peña Nieto of the PRI. The INAI's role in uncovering the extent and reach of government corruption has been pivotal. Its rulings have produced information about the "gray house" in Texas that AMLO's son rented to an influential contractor of Petróleos Mexicanos, the state-owned oil company, and the contracts and bidding processes for the construction of the Tren Maya railway project. The INAI also challenged executive decrees that undermined transparency and accountability before the Supreme Court.

Uncomfortable with INAI oversight, López Obrador pushed to dismantle it. He asked: "If there is the Secretariat of Public Function, if there is the Attorney General's Office as an autonomous body, if there is the Supreme Audit Office of the Federation within the legislative branch, what is the need for the transparency institute?" The question was rhetorical—all these institutions, except the INAI, were *de facto* under executive control during his term. AMLO also claimed that the INAI budget was inflated and that its commissioners earned more than the president himself while painting the body as ineffectual and problematic:

> The INAI is a mess. . . . They created a parallel government, a duality of powers with all these supposedly autonomous institutions. They are autonomous, indeed—autonomous from the people but not from oligarchs. It's a design that was conceived and applied to protect minorities during the neoliberal period, with the false promise that they would combat corruption. It's all a farce.[11]

After repeated rhetorical attacks, AMLO instructed Morena senators not to fill INAI board vacancies, thereby paralyzing the institute. The Supreme Court, however, ruled that the INAI could convene without a legal quorum and ordered the Senate to appoint the commissioners. The Morena-controlled Senate ignored the decision. AMLO's next move was to include dismantling the INAI in his Plan C.

Attacking the INE. López Obrador employed a similar approach to undermine and discredit the INE, a cornerstone of Mexico's democratization. Initially, AMLO pledged to respect the institution's independence. Still, he tried to undermine public confidence by questioning the

INE's impartiality and competence and accusing its councilors of complicity in past alleged electoral frauds: "Electoral councilors did not act to prevent fraud; they allowed it to happen. At the very least, it can be said that they turned a blind eye. There was no guarantee of free and independent voting; there were no clean and fair elections."[12]

He also repeatedly criticized councilors' salaries as excessive and unjustifiable, once again saying that councilors earned more than he did as president. He routinely scrutinized the INE's budget, suggesting its financial resources were mismanaged. By casting doubt on the body's fiscal stewardship, López Obrador was trying to make the INE appear inefficient and corrupt. The president also accused the INE's board of being aligned with "conservative" and vested interests, portraying the institution as an extension of elite power structures rather than a neutral arbiter of the democratic process.

In late April 2022, AMLO submitted Plan A to Congress "to allow the public to elect the representatives of the INE and the Electoral Court democratically," that is, by popular vote. If passed, the electoral reform would have transformed the constitutional status of the INE:

> The goal is to ensure that the INE is no longer controlled by the undemocratic and corrupt oligarchy, which previously appointed INE councilors through political parties—people without principles and lacking a democratic commitment.[13]

In addition to electing councilors by popular vote, the proposed reform also aimed to dismantle the 32 regional INE offices and eliminate state electoral bodies. Plan A failed to pass in the Chamber of Deputies, as Morena fell short of the necessary two-thirds majority. AMLO responded with a reform to ordinary federal laws, Plan B, that replicated most of Plan A. Congress approved Plan B, but the Supreme Court struck it down due to significant violations of the legislative process.

In 2023, Congress replaced four outgoing members of the INE's General Council via sortition, a last-resort procedure used because none of the candidates could secure the required two-thirds of the vote. Three of the four new councilors whose names had been randomly drawn from a transparent box, including the important position of president councilor, were Morena supporters, bringing the total number up to at least four of the eleven. Although Morena was technically short of a majority on the Council, one of the seven sitting councilors was also close to the party.

Somewhat counterintuitively, having a Morena member at the head of the INE safeguarded institutional stability by delaying the proposed reform to elect councilors via popular vote and by reducing AMLO's attacks on the institution (see Figure 1). In 2024, with the council presidency now closely aligned with Morena, the INE played a crucial role in helping the party to secure a manufactured supermajority in Con-

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

gress after the elections. Plan C is now waiting for Sheinbaum, who has pledged to pursue an even broader constitutional electoral reform.

Attacking the judiciary. Mexican courts faced a sustained assault from the beginning of López Obrador's presidency. At first, the attacks were mostly rhetorical. AMLO often criticized judges' salaries and budget management, for instance, or their alleged corruption and nepotism. These types of attacks are sometimes based in a degree of truth, but often they are simply strategies that populist or autocratic leaders use to undermine the authority of oversight institutions. AMLO's verbal offensive against the judiciary, however, eventually turned into institutional attacks: The president actively sought to dismantle the judicial career system and curtail judicial independence. Plan C introduced the popular election of federal judges at all levels, including the Supreme Court. This change fundamentally compromises the separation of powers, raising serious concerns about the politicization of the courts and the erosion of a key democratic check.

During the first three years of his tenure, López Obrador's rhetorical attacks on the judiciary fell mainly into two categories: 1) criticizing judges for earning more than he did as president, claiming—inaccurately—that this violated the constitution; in 2021, AMLO introduced a reform to the Federal Law of Remunerations for Public Servants, *not* to the constitution, which clearly stated (in Article 94) that judges' salaries could not be reduced during their tenure, and 2) accusations of corruption, including allegations that judges were inclined to release criminals, particularly those involved in organized crime. With such attacks, AMLO was defending both his austerity policies and the General Prosecutor's Office (an institution that is highly dependent on the executive branch), whose poorly conducted criminal investigations contribute to low conviction rates on organized crime. It was not until midway through his term that AMLO accused justices of overstepping their authority and breaching the separation of powers, giving him reason to threaten reform.

Specifically, after the 2021 midterm elections, López Obrador lost the qualified majority in Congress needed to amend the constitution. Therefore, he could only introduce reforms to ordinary federal laws. The opposition challenged most of these reforms before the Supreme Court, which on several occasions declared the changes unconstitutional. In response, López Obrador frequently spread misinformation about the Court, falsely claiming that justices lack the power to review or declare laws unconstitutional. AMLO unleashed the following tirade after the Supreme Court struck down Plan B:

> The Judiciary is rotten, acting in a partisan manner. Just imagine—correcting the work of the Legislative Branch. The Executive Branch is elected by the people—I was elected; the same goes for the Legislative Branch. The Executive and Legislative Branches appoint the Supreme Court justices, and now these individuals, who are part of the supreme conservative power,

> are dedicated to obstructing the transformation of the country to maintain the old regime—the old regime of corruption and privilege. The justices decide that a law proposed by the Executive, approved by the Chamber of Deputies and the Senate, is not valid because representatives supposedly violated internal legislative procedures. . . . They did not violate anything. But in an act of arrogance and authoritarianism, the Supreme Court justices dare to declare the law unconstitutional.[14]

This Supreme Court decision triggered a fierce assault from the president in 2023. The usual threats of judicial reform turned into something far more severe: a constitutional reform aimed at purging the judiciary, forcing out thousands of state and federal judges. Their replacements would then be chosen by voters from a list crafted by commissions that the Morena-controlled legislature and executive, along with Supreme Court judges, had selected. The reform would also eliminate "provisional suspension" mechanisms meant to protect individuals from reforms that violate their rights, thereby also limiting the impact of judicial review.

After the 2024 election, López Obrador, with his successor's acquiescence, mobilized Morena and its allies in Congress to approve the amendment: "It is not possible to maintain a judiciary that is not at the service of the people, but rather serves a minority, organized crime, and white-collar crime. There must be a judiciary representing the Mexican people."[15] Once the new Congress opened, it swiftly passed Plan C despite protests from judges, federal-judiciary workers, students, and social organizations.

Reconfiguring Civil-Military Relations

Despite AMLO's campaign promise to send the military back to the barracks after many years of unsuccessfully battling organized crime, the armed forces now have more economic and political influence than at any time since the end of military rule in the 1940s. Moreover, during the first half of AMLO's term, around 250 government functions were transferred to the military.[16] For example, the armed forces are now in charge of distributing vaccines and school textbooks, building publicly owned hospitals, banks, highways, stadiums, and hotels, as well as infrastructure projects that are key for AMLO's administration, including Mexico City's new airport and a tourist train in the south. The military is also responsible for administering the new publicly owned airline and for policing airports and customs areas. The army's budget has doubled since 2018 and is now more than three times that of the Health Ministry.[17]

The military is also participating in civilian government for the first time in recent history. AMLO appointed members of the armed forces to lead government agencies, including the office that distributes medicines across the country, and military personnel have joined important federal committees such as the National Committee of Science and Technology and the National Committee of Public Health.

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

The creation of the National Guard, however, has been especially significant. In 2019, López Obrador's administration dissolved the civilian Federal Police and established the National Guard, of which more than 85 percent of the 110,000 members had previously belonged to the army or navy. Although Congress initially included civilian controls in the constitutional reforms that created the National Guard, the military effectively had full control over it. In 2022, AMLO's administration tried to formally place the Guard under military command. The Supreme Court, however, declared the Congress-approved reform unconstitutional the following year. But in September 2024, in the last weeks of AMLO's presidency, Morena and its allies approved a constitutional reform handing the military control of the National Guard and establishing that Guard members can now investigate crimes, be prosecuted only by military courts, and, even in times of peace, take on roles unrelated to typical military functions.

Unlike other Latin American militaries, Mexico's had largely refrained from participating in politics since the second half of the twentieth century. Under AMLO, however, military participation in public life expanded, playing a central role in the president's strategy to centralize power. The institution López Obrador calls the "guardian angel of Mexico" has helped to enact his Fourth Transformation, and the president used his typical populist rhetoric to justify the military's growing involvement in public affairs: "The soldiers are 'the people' wearing military uniforms."[18]

This militarism has blurred the lines between the state, the government, and the party—divisions that are necessary in a democratic regime. For example, in 2021, the navy secretary, echoing López Obrador's language, identified the judiciary as an "enemy" of the state. Similarly, at the celebration marking AMLO's third year in office, the defense secretary vocally supported the Fourth Transformation, equating it with the three previous ones and using the same partisan rhetoric as the president:

> For us, it is a badge of pride to contribute to the transformation that is currently taking place. The foundations are laid, and we are moving forward with firm steps on the nation-building project that you have promoted since the beginning of your government. The Armed Forces and the National Guard see in the "transformation" that our country is currently experiencing the same purpose as the first three transformations: the good of the homeland.[19]

Citizen Support for Democratic Backsliding

AMLO pursued his quest to steer Mexico away from democracy with the backing of "the people." Mexican public opinion did not reject elite antidemocratic behavior during López Obrador's presidency. Despite concentrating power in the executive, attacking the courts and bureaucracy, and undermining checks and balances, AMLO's approval ratings stayed fairly high. His government was inaugurated in December 2018 with a solid approval rating somewhere between 75 and 80 percent, and

it remained strong throughout the rest of his term—between roughly 60 and 70 percent, according to polling firms in Mexico.[20]

In countries like Mexico, where polarization is high, a significant share of citizens are likely to sacrifice democratic competition in favor of their partisan interests. Polarization, particularly "affective polarization"—defined as intense dislike between partisans—leads citizens to perceive political opponents as illegitimate, making democracy contingent and conditional.[21] Affective polarization in Mexico, driven primarily by animus toward the previous two ruling parties, increased after the 2018 presidential election.[22] This polarization causes citizens to perceive the parties not in power as "unacceptable alternatives," making such voters more likely to support illiberal, antidemocratic behaviors, such as closing Congress or supporting strong leaders who weaken checks and balances.[23]

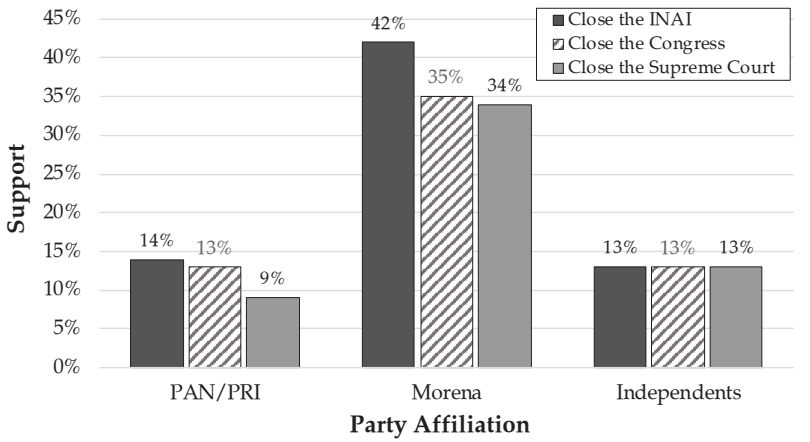
In fact, not only has affective polarization increased, but around a third of Mexicans have consistently reported undemocratic attitudes since 2018. The Mexican Election Study analyzes voters' normative commitment to democracy, specifically whether they support elite antidemocratic behavior. It asked voters in 2018, 2021, and 2024 whether "it is justifiable for the president to close Congress and govern without it during difficult times." In each cycle, about a third of the electorate answered yes (33 percent in 2018, 32 percent in 2021, and 30 percent in 2024). This level of support for executive aggrandizement is among the highest in Latin America, where the regional average is 13 percent according to LAPOP.[24]

We analyzed the relationship between affective polarization and attacks on democratic institutions using data from the Mexican Election Study's postelectoral surveys conducted after the 2018 and 2024 presidential elections and the 2021 midterm election. Interestingly, the share of voters with high levels of affective polarization who justified such attacks was particularly high, but only in 2021 and 2024—not in early 2019, at the beginning of AMLO's presidency. Years of listening to AMLO claiming to be the genuine representative of "the people" and smearing democratic institutions as "corrupt" barriers to the "popular will" apparently stirred voters' illiberal support for undemocratic measures such as closing Congress, particularly among those with extremely negative assessments of the PRIAN.[25]

Two weeks before the 2024 election, we fielded an original survey asking respondents to rank their support, on a scale of 0 to 10, for shutting down three key democratic institutions—Congress and two of AMLO's main targets, the Supreme Court and the INAI. Of PAN and PRI supporters, Morena supporters, and independents, Morena partisans were the most likely to endorse closing all three institutions (meaning that they chose between 7 and 10 on the scale of support): 42 percent supported closing the INAI; 35 percent supported closing Congress; and 34 percent supported closing the Supreme Court. Among opposition partisans and

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

FIGURE 2—SUPPORT FOR CLOSING THE INAI, CONGRESS, AND THE SUPREME COURT IN MEXICO (MAY 2024)



Source: Original survey conducted by the authors.
Note: Figure presents the percentage of respondents who chose 7–10 on a 0–10 scale.

independents, only 13 percent on average justified such scenarios.

This does not necessarily mean that Morena supporters are against democracy. In fact, an overwhelming majority of all respondents—no matter which party, if any, they back—supports democracy in general (77 percent of Morena supporters, 78 percent of PAN and PRI supporters, and 76 percent of independents). But democratic commitment is contingent and weakens when a partisan's party is in power. In this particular case, Morena partisans are willing to accept the erosion of checks and balances because it will benefit their partisan interests.

Overall, these data highlight the importance of public attitudes toward the rise of autocratic politics. If voters do not punish politicians who violate democratic norms, those politicians will feel emboldened to continue. This is precisely what happened in Mexico. While the Supreme Court blocked the process of democratic erosion, a large share (60 percent) of the Mexican public approved of López Obrador's government. Voters' silence helps presidents who have hegemonic aspirations to undermine constitutional checks and balances. Throughout his presidency, AMLO suffered almost no public backlash for his maneuverings. But it was not until 2024 that public opinion went from tolerating the country's democratic backsliding to facilitating it, voting for a party that campaigned on the promise to dismantle constitutional checks.

For the better part of six years, Mexican democracy remained resilient in the face of López Obrador's constant challenges. If this was not easy then, it will be even harder with his successor at the helm and his party with a supermajority in Congress. Morena and its allies began the new legislative term by immediately introducing constitutional changes

meant to rein in institutions that are crucial to the survival and sustainability of democracy, opening the gates of competitive authoritarianism.

Claims that democracy in Mexico is not in trouble are simplistic. López Obrador's populist form of rule succeeded in eroding central aspects of democracy with a two-pronged approach: launching persistent rhetorical attacks on democratic institutions such as the judiciary, INE, and INAI to cast doubts on their legitimacy and to undermine public trust in them; and pushing constitutional reforms designed to weaken or dismantle these pillars of democracy. All this happened gradually and under a veneer of legality.

The regime began taking clear steps toward authoritarianism in 2024 with Morena's manufactured supermajority in Congress, which was confirmed in a controversial decision by the captured INE and Electoral Tribunal. Shortly after, Morena moved to advance judicial reform as soon as the new legislature was seated, weaponizing the justice system to openly pressure opposition members of Congress to pass it. The new Morena-controlled Congress also quickly approved a constitutional reform placing public security directly under military control.

While there had been expectations that Sheinbaum—a former scholar with a PhD in energy engineering—would not continue her predecessor's attack on democratic institutions, those expectations were overly optimistic. After winning the presidency, Sheinbaum endorsed the constitutional reforms targeting the judiciary and INAI. Regarding the judicial reform, she claimed on several occasions that it was absolutely necessary to end corruption and get justice closer to the people: "My opinion is also that judges should be elected . . . And this is not new. I said it throughout the entire campaign, and we are used to maintaining our positions."[26] She also voiced strong support for dismantling the INAI and militarizing public security. As a self-declared left-wing politician, Sheinbaum has had a hard time justifying the latter, especially given the military's failure thus far to resolve or even mitigate the problems associated with organized crime; in the last six years under AMLO, Mexico has seen more than 189,000 homicides, the highest rate since 2006.

Ultimately López Obrador fulfilled his promise to deliver Mexico's Fourth Transformation. What this transformation achieved, however, was to open Mexico to authoritarianism. AMLO's constitutional reforms have left the country without an independent judiciary and more militarized than it has been for eighty years. As we have seen in other countries, including Hungary, Turkey, and Venezuela, populist parties strive to remain legally unchecked in power. To do so, they must capture not only Congress but also the courts. Once they have accomplished that, they are free to go after other key democratic institutions such as the independent media, election commission, or academia. Under Sheinbaum, Mexico is poised to follow this path.

At the time of this writing in late October 2024, President Sheinbaum

[189.147.226.86] Project MUSE (2025-01-07 08:29 GMT)

has given no signal that she intends to veer from the authoritarian path blazed by López Obrador. Quite the opposite: Not only has she vigorously defended judicial reform, but she has also put forward her own project to dismantle the INAI and place its functions under the executive. Still in her first month in office, she has refused to comply with a federal judge's order to withdraw publication of the judicial-reform decree in the country's gazette due to a procedural violation during the legislative process. Taking a page from AMLO's populist handbook, Sheinbaum justified shirking the constitutional check, saying that "a judge is not above the people."[27] The Fourth Transformation increasingly appears to be an authoritarian one.

NOTES

1. There is a growing body of scholarship analyzing Mexico's democratic backsliding under AMLO, including *Revista de Ciencia Política*'s detailed assessments in the last few years *(https://ojs.uc.cl/index.php/rcp)*. See also Mariano Sánchez-Talanquer and Kenneth F. Greene, "Is Mexico Falling into the Authoritarian Trap?" *Journal of Democracy* 32 (October 2021): 56–71; or a more sympathetic assessment of AMLO's legacy in Viridiana Ríos, "Why Mexico Is Not on the Brink," *Journal of Democracy* 35 (July 2024): 57–68.

2. Staffan I. Lindberg, ed., *Democracy Report 2024: Democracy Winning and Losing at the Ballot,* V-Dem Institute, University of Gothenburg, 2024.

3. See Kurt Weyland, *Democracy's Resilience to Populism's Threat: Countering Global Alarmism* (Cambridge: Cambridge University Press, 2024).

4. Kirk A. Hawkins et al., eds., *The Ideational Approach to Populism: Concept, Theory, and Analysis* (New York: Routledge, 2019).

5. Cas Mudde and Cristóbal Rovira Kaltwasser, "Exclusionary vs. Inclusionary Populism: Comparing Contemporary Europe and Latin America," *Government and Opposition* 48 (April 2013): 147–74.

6. Azul A. Aguiar Aguilar, "Populismo y erosión de la democracia," in Alberto Olvera, ed., *Populismo: estado de la cuestión y el caso de México* (Mexico City: ITESO, 2020), 97–113.

7. Alejandro Monsiváis-Carrillo, "Deceitful Autocratization: Subverting Democracy Through Electoral Reform in Mexico," *Latin American Policy* (September 2024): 486–508.

8. Aristegui Noticias, "Se está con la transformación o en contra de ella: AMLO," 6 June 2020, *https://aristeguinoticias.com/0606/mexico/se-esta-con-la-transformacion-o-en-contra-de-ella-amlo/*.

9. Inter-American Commission on Human Rights, "Relatoria Especial para la Libertad de Expresión. Informe Anual 2023," OEA/Ser.L/V/II Doc. 386, 6 December 2023, *https://www.oas.org/es/cidh/expresion/informes/IA2023%20RELE_ES.pdf*.

10. The Attacks on Democratic Institutions Database (ADID) was designed and collected by Azul Aguiar at Instituto de Estudios Superiores de Occidente (ITESO). We are grateful to Rafael Rangel for his research assistance. AMLO's morning conferences are available at *www.gob.mx/presidencia/es/archivo/articulos*.

11. AMLO, Mañanera, 30 November 2022, *https://www.gob.mx/presidencia/es/archivo/articulos*.

12. AMLO, Mañanera, 20 July 2020, *https://www.gob.mx/presidencia/es/archivo/articulos*.

13. AMLO, Mañanera, 3 November 2022, *https://www.gob.mx/presidencia/es/archivo/articulos*.

14. AMLO, Mañanera, 9 May 2023, *https://www.gob.mx/presidencia/es/archivo/articulos*.

15. AMLO, Mañanera, 3 June 2024, *https://www.gob.mx/presidencia/es/archivo/articulos*.

16. Jorge Monroy, "Documentan el traslado a militares de 246 tareas civiles," *El Economista,* 17 October 2021, *www.eleconomista.com.mx/politica/Documentan-el-traslado-a-militares-de-246-tareas-civiles-20211020-0155.html*.

17. México Unido contra la Delincuencia, "El negocio de la militarización: Opacidad, poder y dinero," 2nd ed., February 2024, *www.mucd.org.mx/wp-content/uploads/2024/02/Negocio2.0.pdf*.

18. Infobae, "Soldados son pueblo uniformado": AMLO negó militarización del país y defendió a las Fuerzas Armadas," 1 December 2021, *https://www.infobae.com/america/mexico/2021/12/02/soldados-son-pueblo-uniformado-amlo-nego-militarizacion-del-pais-y-defendio-a-las-fuerzas-armadas/*.

19. "'Es necesario estar unidos en el proyecto de nación que está en marcha': Luis Cresencio Sandoval," *Aristegui Noticias,* 20 November 2021, *https://aristeguinoticias.com/2011/mexico/la-4t-esta-haciendo-realidad-el-sueno-de-justicia-con-el-que-nacio-la-revolucion-amlo/*.

20. Oraculus, "Aprobación presidencial," 1 October 2024, *https://oraculus.mx/aprobacion-presidencial/*.

21. Milan W. Svolik, "Polarization versus Democracy," *Journal of Democracy* 30 (July 2019), 20–32; Rodrigo Castro Cornejo, "The AMLO Voter: Affective Polarization and the Rise of the Left in Mexico," Journal of Politics in Latin America 15, no. 1 (2023): 96–112.

22. Ulises Beltrán, Rodrigo Castro Cornejo, and Melina Altamirano, 2024 Mexican Election Study (CSES); Castro Cornejo, "The AMLO Voter."

23. Svolik, "Polarization versus Democracy"; Alejandro Monsiváis, "Happy Winners, Sore Partisans? Political Trust, Partisanship, and the Populist Assault on Electoral Integrity in Mexico," *Journal of Politics in Latin America* 15, no. 1 (2023): 72–95; Rodrigo Castro Cornejo and Joy Langston, "Anti-Democratic Attitudes, the Winner-Loser Gap, and the Rise of the Left in Mexico," *Revista Latinoamericana de Opinión Pública* 12, no. 2 (2023): 1–24, *https://doi.org/10.14201/rlop.31414*.

24. AmericasBarometer, LAPOP Lab (2009–13), *https://www.vanderbilt.edu/lapop/about-americasbarometer.php*.

25. See Appendix at *https://www.rodrigocastrocornejo.com/research.html*.

26. Claudia Sheinbaum, press conference, 13 June 24, *www.youtube.com/watch?v=AFyguWucqh4&t=1063s*.

27. Imagen Television, "Una juez no está por encima del pueblo de México: Sheinbaum," 18 October 2024, *https://www.imagentv.com/noticias/imagen-noticias-con-crystal-mendivil/una-juez-no-esta-por-encima-del-pueblo-de-mexico-sheinbaum*.